

Form No.HCJD/C-121
IN THE LAHORE HIGH COURT, LAHORE.
(JUDICIAL DEPARTMENT)

Crl.Misc.No.18739-B/2021

Rohan Ahmad
Vs.
The State, etc.

Crl.Misc.No.18744-B/2021

Usman Ahmad, etc.
Vs
The State, etc.

S/No. of order/Proceedings	Date of order/Proceedings	Order with signature of Judge, and that of parties or counsel, where necessary.
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26.08.2021 Sh. Usman Karim-ud-Din, Advocate for the petitioners.
Mr. Muhammad Matloob Sindhu, Assistant Attorney
General with Naveed Sub-Inspector/FIA.
Mr. Muhammad Shahid Tasawar Rao, Advocate for the
complainant.

By this single order, I intend to decide two bail applications
i.e. **Crl.Misc.No. 18739-B/2021** “Rohan Ahmad versus The State,
etc.” and **Crl.Misc.No.18744-B/2021** “Usman Ahmad and Tariq
Ahmad Shahzad versus The State, etc.”, whereby petitioners seek
post arrest bail in case FIR No.C-29/2020 dated 26.05.2020 under
section 11 of The Prevention of Electronic Crimes Act, 2016 and
sections 295B, 298C, 120B, 34, 109 PPC registered at police station
FIA, Cyber Crime Reporting Centre, Lahore.

2. Precisely the prosecution case catches the facts from receiving
a message by the complainant on his phone No. 0336-0639147
through an unknown WhatsApp No.03224374750 about essay
writing & quiz program and later four messages of like nature were
also dropped in his WhatsApp inbox. Complainant constrained to
ring back the number to know the sender; holder on the other side
informed him about a quiz contest with the name of Sultan-ul-Qalam
and asked the complainant to join the link on website, which he
shared through another WhatsApp message as [http://bit.ly/Sultan-ul-
Qalam](http://bit.ly/Sultan-ul-Qalam). The said link contained a further link which was when
opened, certain books including one Holy Quran with the name of

تفسير صغير were found on internet. The complainant downloaded and got prints of all books. On reading the book روحانی خزائن blasphemous content was found therein; further the Holy Quran تفسير صغير also carried desecrated translation. Complainant highlighted the blasphemous material in said books, Links of the books and screenshot of messages on WhatsApp were taken and produced along with the complaint. Complainant, on the basis of collected information, got to know the nefarious design of a group who in order to create disastrous and turbulent effect on society were spreading in the public, the hateful and literally distorted books banned by Government of the Punjab. These activities were being done under the supervision of Khalid Ahmad Shah, Malik Khalid Masood and Mirza Fazal Ahmad. During inquiry ownership of message sending number was found of Rohan Petitioner; FIA team pursuant to a search warrant raided upon the house of the petitioner and recovered Mobile No.03224374750. On search of house, from one room printed Holy Quran تفسير صغير, روحانی خزائن and some other banned books were found, the same were taken into possession with number and names, through inventory. Petitioner was arrested at the spot, on checking the recovered mobile containing WhatsApp No.03224374750, email accounts mnizamtaleem@gmail.com and tames.rohan@gmail.com were seen active. In the technical analysis report of FIA forensic science laboratory of both emails, through the drive of mnizamtaleem@gmail.com, banned تفسير صغير, (desecrated Holy Quran), روحانی خزائن etc., were found to have been publically shared on <http://bit.ly/Sultan-ul-Qalam>. Another web link http://drive.google.com/drive/folders/1UDAT2O5RzUm2_pdYcNt3whTJx72x9nHI?usp=sharing was also given therein, by which banned books تفسير صغير desecrated Holy Quran and others could be seen and read online. Similarly, digital media/Laptop was also recovered which do contain desecrated books saved and had been shared through above given email accounts. During investigation, the petitioner Rohan owned that being ناظم تعليم مجلس خدام الاحمدية it was his responsibility to organize competitions and upload the content. Further disclosed that it was being done under the patronage of Sadar Salik-a-Majlis,

Khudam Al-Ahmadia and with the supervision of Qaid Usman (Petitioner) and including the assistance of Hafiz Tariq Ahmad (Petitioner) in all these affairs in their respective capacities. Pursuing to above raid, an FIR was registered; Usman Ahmad and Tariq Ahmad accused/ petitioners were later arrested on 29.09.2020 who were joined into investigation and through their email IDs, similar books were found shared with people all over the world and during investigation they were also found connected with Rohan accused/petitioner; therefore, allegations against all the accused/petitioners are more or less same and the only difference was that Rohan was arrested first.

3. Learned counsel for the petitioners contested the allegations with submissions in alternative; non culpabilis was the first voice with stance that petitioners are being victimized, complainant has been planted, no forensic analysis of recovered phones was done by an authorized Lab; there was no direct linked evidence against the petitioners. Applicability of Section 295B PPC against the petitioners raises big question comparing the contents of FIR. Section 295A & 295C are not mentioned in FIR as well as in Report u/s 173 Cr. P.C. and adding them to the heads of charge by the court in no case requires the petitioners to seek bail in those sections; petitioners have falsely been tagged in this criminal process. Learned counsel for the petitioners in alternative has a stance that even if the petitioners accept the act of sharing the link containing a copy of Holy Quran with translation or interpretation contrary to belief of Muslims, such act incriminates them for prosecution ***u/s 9 of The Punjab Holy Quran (Printing and Recording) Act, 2011.*** It carries lesser responsibility or criminal liability because such offence punishable up to three years' imprisonment only. The second offence at the most attracted, calls for prosecution ***u/s 5 of The Criminal Law Amendment Act, 1932*** which carries punishment up to six months' imprisonment. In this regard he placed reliance on the case ***"MUHAMMAD HUSSAIN MUAWIYAH versus INSPECTOR GENERAL OF POLICE, PUNJAB and others"*** (PLD 2019 Lahore

448). Further contends that above offences do not fall within the prohibitory clause, therefore, bail is a rule in such like offences and in the light of cited two laws, petitioners cannot be prosecuted under any other law; therefore, all the charges are baseless.

5. On the other hand, learned counsel for the complainant states that from the contents of FIR section 295A & 295C are made out and trial court has rightly framed charge under such sections of law; therefore, bail petitions may be returned to the trial court for decision afresh by the trial court; he placed reliance on case “IMTIAZ versus AZAM KHAN and others” (2021 SCMR 111). While referring the case “MAZHAR ALI versus The STATE and others” (2020 P Cr. LJ 1571), he contends that bail is sought and granted in an offence and not in a case; further contends that the court which grants or declines the bail can only decide fate of added offences, reliance was placed on “TALAT HUSSAIN versus AQIB MEHMOOD and another” (2020 YLR 356). Further contends that Report of Mutahida Ulema Board is on the record which shows that books, shared by the petitioners through a link on internet, were banned by the order of government of the Punjab; it is evident from the record that such books contain blasphemous material; therefore, offences charged with entail maximum punishment; petitioners are not entitled to bail.

6. Learned Assistant Attorney General while touching the provisions of The Punjab Holy Quran (Printing and Recording) Act, 2011 submits that intent of legislature is reflected from the scheme of provisions of this law which have been designed to protect the purity and sanctity of standard text of Holy Quran; it does not encompass the ordinary criminals, rather revolves around the registered publishers only and for its application, it firstly cast a responsibility to have registration of publishers of Holy Quran for the purpose of printing and publication in order to ensure accuracy in printing and identification of publishers if they violate the provisions of this law. Applicability of provisions of this law cannot be extended to any other person, who would be dealt under respective ordinary laws. Further contends that it is trite law that from a

statement of allegation if apparently different offences under same or different laws are found committed unless it is expressly barred in any law, prosecution in different offence can be initiated and in this very case, apparently all the offences as mentioned in FIR are found committed. He prayed for dismissal of bail petitions.

7. Contentions of proponents heard; record perused. Peculiar facts and contentions of parties require to address certain claims in detail for decision of above bail petitions.

8. The books collected from the possession of accused and found on a link shared were admittedly banned by the government of the Punjab through different Notifications of year 2014 & 2016 showing forfeiture of the same under section 99A of Cr. P.C. and their forfeiture ipso facto is a proof that such books contain material, publication of which is an offence u/s 295A, 295B, 298A & 298C PPC apart from other offences as mentioned in section 99A of Cr. P.C.; therefore, Petitioners have rightly been charged u/ss 295B, 298C, 120B, 109, 34 PPC and Section 11 of Prevention of Electronic Crimes Act, 2016; learned counsel for the petitioners did not dispute the applicability of section 298C PPC in this case, however raised objection on section 295B PPC, he was of the view that the words “defile, damage and desecrate” used in the section could only be assessed through a physical act of wearing & tearing or damaging the hard copy of Holy Quran, it has nothing to do with textual change or putting different translations or aimed interpretations. Submission of learned counsel has only touched a narrow-scoped application of this section which otherwise stood in a wider meaning. Word “defile” has been defined in the case “RIAZ AHMAD and 3 others versus THE STATE” (PLD 1994 Lahore 485), as under;

“Defile” means to corrupt purity or perfection of, to debase, to make ceremonially unclean, to pollute, to sully, to violate the sacredness or sanctity of, to desecrate, profane, to sully the honour of, and to dishonour.”

It is clear from the above definition that any attempt to change the version and text in any copy of Holy Quran would amount to

defiling, if it has been done wilfully; intention of petitioners to initiate quiz program on Islamic teaching or history with defiled copy of Holy Quran take them to label their act as done wilfully.

According to Halsbury's Laws of England, Fourth Edition, Vol.11, para. 1252 'wilfully' means deliberately and intentional, not accidentally or inadvertently. Frank R. Prassel in his Criminal law, Justice and Society 1979 Edition, page 150 says that "Intent is probably the most common, at least for the major traditional offences, but some codes call the proof of 'wilful' 'voluntary', 'malicious', 'corrupt', or 'purposeful' product instead. These terms are generally accorded similar legal meanings, subject to limited variation from one jurisdiction to another.

According to Black's Law Dictionary, Fifth Edition, "an act is done wilfully and knowingly when the actor intends to do it and knows nature of the act. Further that an act or omission is 'wilfully' done, if done voluntarily and intentionally and with the specific intent to do something the law forbids, or with the specific intent to fail to do something the law requires to be done; that is to say, with bad purpose either to disobey or to disregard the law. It goes on to say that when used in criminal context it generally means an act done with a bad purpose, without justifiable excuse; stubbornly, obstinately, perversely. The word is also employed to characterize a thing done without ground for believing it is lawful or conduct marked by a careless disregard whether or not one has the right so to act."

Stroud's Judicial Dictionary Vol. 4, third Edition, says "that the legal meaning of wilfull is purposely without regard to bona fides or collusion and deliberately and intentionally but does not involve obstinacy of an obstructive kind and it means an intentional disobedience. In the Law Terms and Phrases Judicially Interpreted, by Sardar Muhammad Iqbal Khan Mokal, the term "wilfully" amounts to nothing more than this that the person whose action is in question, mows that he is doing and intends to do what he is doing and is free agent. He further says that wilfull means wantonly, intentional, deliberately and consciously and not accidentally or by inadvertence. Reference is made there to Madras State Waqf Board v. Tajammal Hussain (AIR 1968 Mad. 332) and Kedar Nath v. The State (AIR 1965 All. 233)."

From the above expression, it is clear that petitioners apparently disseminated such publications wilfully, which can be inferred from the circumstances.

9. Allegation against Rohan petitioner was of inviting the complainant for quiz program through WhatsApp messages and later sharing a link which took the matter into inquiry by FIA followed by his apprehension from his house on 26.05.2020 with proof of such

activities which finally resulted into registration of FIR; whereas Usman and Tariq accused were booked on the disclosure of Rohan Petitioners as being supervisor and aider respectively of such quiz contest, they could not be arrested, hence were proceeded as absconders. They were arrested later on 29.09.2020; their email IDs were tracked wherein they had in contact with Rohan accused petitioner for arrangements of quiz program. On their lead police tried to collect further evidence from their pointed place but when police tried to enter such place after obtaining search warrants, they were restricted by the members of Ahmadi Community. It is apparent that Usman and Tariq accused/petitioners were acting under a criminal conspiracy at a large scale; therefore, petitioners are also liable for such offence. The section 120B PPC is also part of FIR which deals with such criminal conspiracy, In the Case of “IMRAN ASHRAF AND 7 OTHERS versus THE STATE” (2001 SCMR 424), it has been held: -

“As far as commitment between two or more persons who have conspired together to commit an offence etc., is concerned it is a relevant fact as against each of the persons believed to be so conspiring as well as for the purpose of proving the existence of the conspiracy as far as the purpose of showing that any such person was a party to it within the meaning of Article 23 of Qanun-e-Shahadat Order, 1984. For convenience it is reproduced hereinbelow: --

"23. Things said or done by conspirator in reference to common design.---Where there is reasonable ground to believe that two or more persons have conspired together to commit an. offence or an actionable wrong anything said, done or written by any one of such persons in reference to their common intention, after the time when such intention was first entertained by any one of them, is a relevant fact as against each of the persons believed to be so conspiring, as well for the purpose of proving the existence of the conspiracy as for the purpose of showing that any such persons was a party to it."

A perusal of above Article of Qanun-e-Shahadat Order suggests that the Court seized with the matter has a duty to satisfy itself that there is a reasonable ground to believe the existence of conspiracy in pursuance of an agreement among them to commit an unlawful act etc. existed, therefore, it becomes obligatory upon the prosecution to produce evidence for the purpose of establishing that two or-more persons have conspired for the commission of a crime or unlawful act by way of entering into an agreement and making commitment to fulfill it for the purpose of achieving the object. If the prosecution has failed to bring on record evidence to show that before the actual

commission of the offence there was any agreement may be oral or written amongst two or more persons for the commission of the offence then it would not be possible to conclude that prior to the commission of the offence any criminal conspiracy was hatched to attract the provisions of section 120-B, P.P.C.”

Full Bench of this Court in the case “MUHAMMAD JAWAD HAMID and another versus Mian MUHAMMAD NAWAZ SHARIF and others” (2019 P.Cr.LJ 665) has referred some celebrated judgments about requirement to prove conspiracy, part of which is reproduced as under;

“Since conspiracy is hatched in secrecy, to bring home the charge of conspiracy, it is relevant to decide conclusively the object behind it from the charges leveled against the accused and the facts of the case. Object behind it is the ultimate aim of the conspiracy. Further, many means might have been adopted to achieve this ultimate object. The means may even constitute different offences by themselves, but as long as they are adopted to achieve the ultimate object of the conspiracy, they are also acts of conspiracy.

Upon the touch stone of above observations and other mentioned in the judgment supra, His Lordship Mr. Justice Muhammad Qasim Khan J. (as his lordship then was), has held as under;

Prosecution need not necessarily prove that the conspirators expressly agreed to do or cause to be done the illegal act, the agreement may be proved by necessary implication. It is not necessary that each member of the conspiracy must know all the details of the conspiracy. All of them need not be present in Pakistan or continue to remain in Pakistan. The entire agreement must be viewed as a whole and it has to be ascertained as to what in fact the conspirators intended to do or the object they wanted to achieve. Accused need not be present at each and every meeting for being held to be a part of the conspiracy.

It is also not necessary that each member of the conspiracy should know all the details of the conspiracy. Conspiracy is a continuing offence. Thus, if any act or omission which constitutes an offence is done in Pakistan or outside its territory, the conspirators continue to be the parties to the conspiracy. The conspiracy may be a general one and a smaller one which may develop in successive stages. It is an unlawful agreement and not its accomplishment, which is the gist/essence of the crime of conspiracy. In order to determine whether the conspiracy was hatched, the court is required to view the entire agreement and to find out as in fact what the conspirators intended to do.”

Offence of Criminal conspiracy also entails punishment equal to one prescribed for the offence; therefore, in this case, this offence also falls within the prohibitory clause.

10. In the sequel, section 34 PPC was also alleged against the petitioners; nevertheless, it would be determined during trial yet sections 35 & 37 PPC with an independent space catch the offenders' liability in this whole expedition; such sections are reproduced for reference:-

Section-35 When such an act is criminal by reason of its being done with a criminal knowledge or intention:

Whenever an act, which is criminal only by reason of its being done with a criminal knowledge or intention, is done by several persons, each of such persons who joins in the act with such knowledge or intention is liable for the act in the same manner as if the act were done by him alone with the knowledge or intention.

Stance of petitioners' counsel that quiz contest was arranged for Ahmadi Community only is belied from the record because that link was for wider circulation as per technical analysis reports, reproduced in the case diary during investigation; information from email address of Usman accused/petitioner were retrieved which contain as many as 46 documents including google documents and quiz program documents, to which the people from all over the word have responded with their comments. Similarly, from email ID of Tariq accused/petitioner, 10 documents of similar nature were found shared. The above facts apparently show that such act was done with criminal intention and knowledge.

Section-37. Co-operation by doing one of several acts constituting an offence:

When an offence is committed by means of several acts, whoever intentionally co-operates in the commission of that offence by doing any one of those acts, either singly or jointly with any other person, commits that offence.

If for the sake of arguments, the common intention of accused petitioners is skipped, even then their cooperation with each other in

commission of offence make them culpable under section 37 ibid for the liability of same offence.

11. Section 11 of Prevention of Electronic Crimes Act, 2016 (PECA) is also apparently made out against the petitioners. Though it is directly attracted, yet by virtue of section 28 of said Act, they are also jointly liable for the act committed by them alone. Section 28 of PECA says that provisions of PPC shall apply on provision of PECA if not inconsistent and this application means that the words used in PPC for showing *mens-rea* like wilfully, dishonestly, fraudulently, intentionally, maliciously etc. would apply on PECA offences as well and additionally, provisions relating to common intention, criminal conspiracy, common object and abetment including general exceptions would also be applicable. Contention of learned counsel for the petitioners that forensic report has not been obtained from the authorized Lab as mentioned in section 40 of PECA which requires the government to establish independent Lab from the investigating agency. I have examined the reports; first page of the report was styled as under;

Forensic Analysis Report

Final Report
(Version 1.0)
FIR: 29/2020
CCW-Lahore
Assistant Director Forensic
Reporting date
Total pages
Report + Annexures
Monogram
Digital Forensic Lab
Cyber Crime Zone
Federal Investigation Agency, Lahore

Section 51(1)(n) & (o) of PECA deals with framing of rules for powers, functions and responsibilities of the Forensic Lab and SOPs of the Forensic Lab to interact with investigating agency. Such Rules have been framed as “*Prevention of Electronic Crimes Investigation Rules, 2018*” and notified in Gazette of Pakistan Extraordinary, Part II, on 7th August, 2018. Relevant Rules are as under;

Rule-11 Forensic Capability: - (1) The Cybercrime Wing shall establish and maintain forensic capabilities in line with the highest standard of working to acquire, assess and report digital evidence admissible in evidence before any Court.

(2) The Cybercrime Wing shall build the capacity of analyzing information systems, data and devices in a manner that protects and preserves the evidence and helpful in gathering of evidence.

(3) The digital evidence acquired through forensic experts shall be thoroughly assessed with respect to scope of the case to determine appropriate course of action.

(4) The forensic experts examining the digital evidence shall be duly qualified and responsible for complete and accurate reporting of the results of the digital evidence analysis including the recording steps taken during the examination.

(5) The management and working of digital forensic laboratory shall be governed under clearly defined procedures as specified under Schedule V.

The above Rule clearly indicates that Cybercrime wing shall build the capacity of analyzing and in the present case technical Analysis reports have been prepared by such wing as highlighted above. Thus, above report apparently fulfills the requirement of section 40 of PECA, 2016 and further would be dilated upon by the learned trial court.

Similarly, Rule 12 of above Rules deals with expert opinion, Rule 13, with re-examination of digital forensic and Rule 14 talks about Standard operating procedures and guidelines, yet petitioners have neither challenged such reports nor requested for re-examination of evidence so far.

12. So far as the contention of learned counsel for the petitioner about application of provisions of The Punjab Holy Quran (Printing and Recording) Act, 2011 on such like offences are concerned, it would be appropriate to refer the recommendations made by this court in the case “MUHAMMAD HUSSAIN MUAWIYAH versus INSPECTOR GENERAL OF POLICE, PUNJAB and others” (PLD 2019 Lahore 448), before proceeding further; some relevant recommendations are as under:-

- vi. in case of surfacing of any book even with the name of Holy Qur'an but with distorted text or mutilated translation the same be confiscated forthwith and the individuals/communities or the corporate bodies/companies involved in publication of said book be taken to task while implementing the provision of the Act, 2011 and the Rules made thereunder;
- xi. all the wings of the Law Enforcement Agencies be mobilized to curb printing/publication of any proscribed material by the non-Muslims;
- xiv. the Quran Board, Cabinet Subcommittee on Law and Order in the province, Committee Muthida Ulma Board Punjab, Police Department, Auqaf and Religious Affairs Department Government of Punjab, Association of Publishers and Traders of Religious Books Punjab and Information Technology Department shall coordinate *inter-se* with regular intervals and their deliberations shall be shared with the Ministry of Religious Affairs and Interfaith Harmony, Government of Pakistan to formulate a uniform policy/SOP for the entire country to curb printing and publication of proscribed religious material;

From the recommendation No. (vi), it is visibly clear that all such persons be taken to task while implementing the provision of the Act, 2011 and the Rules made thereunder. Command and dictates of this court were to take action as per provisions of this Act. The Act firstly requires registration of Publishers etc. and **then commands to take action on violations against said registered publishers only**; for reference relevant sections are reproduced as under;

3. Registration of publishers and recording companies

The Government may, in the prescribed manner and on payment of prescribed fee and fulfillment of the prescribed terms and conditions, register a publisher or a recording company for purposes of publishing or recording the Holy Quran.

As per section 4 of the Act *ibid* Quran board shall regulate all the affairs under this Act; section 5 deals with the process of registration with mode and manner; whereas sections 6, 7 & 8 deal with certain offences. Out of such section following is relevant in this case;

7. Translation or interpretation of the Holy Quran contrary to belief of Muslims.

Where, in a copy or record of the Holy Quran, or in any extract thereof published in a text book, a prayer book, a religious treatise or any other book, an Ayah is translated, interpreted or commented upon by a non-Muslim contrary to the belief of Muslims, the author, the printer or publisher, or the person who prepared the record, whether or not registered under this Act, shall, unless he proves that such translation, interpretation or commentary occurred only owing to a printing or mechanical error, be liable to punishment provided for in section 9.

This law prescribes the Penalties in following terms:-

9. Penalty

(1) A printer, publisher or a proprietor of a recording company who contravenes any provision of this Act or the rules made thereunder, or a person in whose voice a record is prepared, or a person who has certified under sub section (3) of section 5, a specimen copy or record of the Holy Quran which is not in conformity with the provisions of this Act, shall be liable to imprisonment for a term which may extend to three years, or with fine of not less than twenty thousand rupees, or with both.

(Underline supplied for emphasize)

(2) The Government may cancel the registration under section 3 of a publisher who or a recording company which is convicted of an offence under subsection (1).

10. Offences by corporations

If the person guilty of an offence under subsection (1) of section 9 is a company or other body corporate, every proprietor, director, manager, secretary or other officer of the company or body corporate shall, unless he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of the offence, be deemed to be guilty of such offence.

Examination of above provisions clearly indicate that they are not applicable on ordinary person/individual; hence contention of Learned Assistant Attorney General is perfectly in accordance with the spirit of above legislation; petitioners cannot claim benefit of such provisions.

13. The other stance of applicability of section 5 of The Criminal Law Amendment Act, 1932 is concerned, before dilating upon it, same is reproduced for reference:

5. Dissemination of contents of prescribed document (1) *Whoever publishes, circulates or repeats in public any passage from a newspaper, book or other document copies whereof have been*

declared to be forfeited to Government under any law for the time being in force, shall be punished with imprisonment for a term which may extend to six months, or with fine, or with both.

(Underline supplied for emphasize)

From the bare reading of such section, it is manifested that it talks about **only a passage** from newspaper, book or document etc. and not the whole of such; therefore, it is not applicable. Moreover, offence under this section and offences under the Provisions of Act, 2011 supra are regulatory offences which do not require any particular intent; once an intention is added they become entirely a different offence.

A **regulatory offence** or **quasi-criminal offence** is a class of crime in which the standard for proving **culpability** has been lowered so as ***mens rea*** (Latin for "guilty mind") element is not required. Such offences are used to deter potential offenders from dangerous behaviour rather than to impose **punishment** for moral wrongdoing.

These offences are also known as strict liability offence or an **absolute liability offence** which is a type of **criminal** offence that does not require any **fault elements** (*mens rea*) to be proved in order to establish guilt. The prosecution only needs to show that the accused performed the **prohibited act** (*actus reus*). As such, absolute liability offences do not allow for a defence of **mistake of fact**.

Under the above consideration, it is concluded that petitioners are not responsible solely u/s 5 of The Criminal Law Amendment Act, 1932. Even otherwise, as per preamble, this law was promulgated to supplement the law titled as The Press (Emergency Powers) Act, 1931 and such Act stood repealed by Press and Publication Ordinance, 1960 (ORDINANCE XV of 1960) by virtue of section 66.

14. Control of some publication is somewhat regulated through section-6 of West Pakistan Maintenance of Public Order Ordinance, 1960 and violation thereof is punishable u/s 13 of said Ordinance carrying punishment of 3 years' imprisonment. A further look into section 11W of Anti-terrorism Act, 1997 makes it clear that

dissemination of any material though even through electronic means which incites religious or other hatred is punishable under such section up to five years.

15. The question raised by the learned counsel for the complainant that trial court has framed the charge u/ss 295A & 295C PPC; therefore, in the light of judgment “*IMTIAZ versus AZAM KHAN and others*” (2021 SCMR 111), the matter may be referred back to trial court because petitioners have not sought the bail in such sections, such contention is misconceived because in that case Honorable Supreme court has not commented upon the act of High court for sending back the petition for fresh decision rather highlighted a past fact without giving any sanction to the order of High court in this respect; therefore, case law referred by him is not applicable in the present case. So far as the question of applicability of section 295A & 295C PPC is concerned, they are not part of police record so far; however, perusal of bail declining order reveals that trial court has already considered the application of section 295A PPC. Learned trial court has framed the charge additionally under such sections 295C PPC; therefore, learned counsel for the petitioners halfheartedly entered such section in the caption of petition in the view of the court. This court can see whether such offence is apparently committed, but for such exercise whole of the documents would be gone through which is the function of trial court and that it has already been done; therefore, it would be presumed that judicial act has been regularly performed as contemplated under Article 129 (e) of Qanun-e-Shahadat Order, 1984; any comment at this stage may prejudice the case of either of the parties.

16. Section 344 Cr. P.C has very close nexus with section 497 Cr. P.C which says that if due to reasonable cause it becomes necessary or advisable to postpone the commencement of or adjourns an inquiry or trial, the court may do so from time to time and remand the accused to custody. Explanation attached to such section is very important to understand the concept of remanding the accused to custody; such explanation is reproduced as under:-

Explanation Reasonable cause for remand: If sufficient evidence has been obtained to raise a suspicion that the accused may have committed an offence, and it appears likely that further evidence may be obtained by a remand, this is a reasonable cause for a remand

Remanding accused to custody is an indicator that sufficient evidence is available on the record and there is likely that further evidence would be obtained by a remand. If the court considers that further evidence is not expected and sufficient evidence so far has not been brought on record, court, in that eventuality, may release the accused on bail. That is the reason that in section 497 Cr. P.C. it is mentioned as follows;

*“when any person accused of non-bailable offence is arrested or detained without warrant by an officer in-charge of Police Station, or **appears or brought** before court, he may be released on bail.....”*

The expression “**appears**” means appears in response to a summon by the court and “**brought**” means brought from custody. So, if an accused is brought from custody, he is either remanded back to custody or released on bail on the touchstone of availability or non-availability of sufficient evidence. In this respect guidance is also sought from the book “**A PRACTICAL APPROACH TO CRIMINAL PROCEDURE**” by John Sprack TENTH EDITION, the relevant portion whereof reads as under:-

“The power of courts to remand an accused person is closely bound up with the power to grant bail. A remand occurs when a court adjourns a case and either bails the accused for the period of the adjournment or commits him to custody to be brought before the court on the adjournment date. As the above implies, remands are either on bail or in custody.”

That is the reason, Honorable Supreme court has ordained that when a case is in the trial, barring exceptional cases, court should not grant or cancel the bail. Reliance is on the case “REHMATULLAH versus THE STATE and another” (2011 SCMR 1332); therefore, accused/petitioners do not deserve premium of bail at this stage of the proceedings as offences alleged against them fall within the

prohibitory clause of section 497 Cr.P.C. Apparently, evidence connecting the petitioners with commission of offences is available: case is in the trial and trial court has already refused to exercise discretion in favour of the accused/petitioners to enlarge them on bail and after considering that sufficient evidence is available has remanded them to custody. Consequently, both these bail applications fail and are hereby dismissed.

(Muhammad Amjad Rafiq)
Judge.

Approved for reporting

Judge

Javed*